

25SMCV05297 25SMCV05297

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court will discuss matters with the parties. The court is unsure whether it can go forward today, and assuming not, the court will discuss dates with the parties. However, the court suggests the following if the parties want to entertain it. The parties might want to consider bifurcating the issue of what happens to the property from damages. Right now, defendants seek to sell the property in that they claim it is untenable for the parties to own it jointly and it is not feasible to partition. The court is not sure what plaintiff wants. The court knows that plaintiff does not want to sell the lot other than potentially to himself, but the court is not sure if plaintiff's position is that the parties really can own it jointly. That seems to be a straightforward question upon which the court can rule after hearing relatively little evidence. Once that is decided, the issue of damages can go forward. If the three parties continue to own the property jointly, then the court would just determine liability and damages. If the property is to be sold to a third party, there would at least be a sum of money readily available to satisfy any damages that might be awarded. If the property is to be sold amongst the litigants, then the damages can act as a credit or addition to the purchase price. The court might also decide, on its own motion, to bifurcate.

Just a thought.